

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
William Long) Docket No. 2022-269
License No. 068.0045710)

STIPULATED VOLUNTARY SURRENDER OF LICENSE

NOW COMES the State of Vermont, by and through Prosecuting Attorney George Hasselback, and Respondent, William Long, who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Statement of Facts

2. William Long ("Respondent") of St. Johnsbury, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0045710. This license was originally issued on September 18, 2009 and expires on January 31, 2023.
3. Respondent was also previously licensed by the Vermont Board of Medical Practice ("BMP") as a Medical Doctor.
4. During the relevant time, Respondent practiced medicine as a solo practitioner, primarily providing mental health services to patients.
5. On September 27, 2022, the BMP revoked Respondent's license to practice medicine via a Stipulation and Consent Order ("the BMP Order") that was also signed by Respondent.
6. The BMP Order contained certain Findings of Fact that Respondent agreed were "an adequate basis" for the permanent revocation of Respondent's Vermont medical license.
7. Specifically, these Findings of Fact involved certain actions taken by Respondent in relation to three of his patients, identified respectively in the BMP Order as "Patient 1," "Patient 2," and "Patient 3."
8. These facts, as established by the BMP Order, include, but are not limited to the following:
 - a. Respondent failed to produce a copy of Patient 1's medical record upon her request. Patient 1 made the request in a letter from her attorney dated February 16, 2022 with an attached signed medical authorization form from Patient 1. Respondent did not

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produce Patient 1 's records to her until May 27, 2022, over three months after her initial request. In an interview with the BMP investigator, Respondent stated that his reason for not producing the records upon request was that it would require producing approximately a hundred and fifty pages and he "just hoped it would go away."

- b. Respondent rented a property he owned to Patient 1 and Patient 2 in 2017, making him their landlord in addition to being their treating mental health provider. He performed physical examinations of Patient 1 and Patient 2 based on their complaints of various physical ailments while acting as their landlord. Patient 3 also lived at that residence.
 - c. Respondent filed eviction paperwork on November 16, 2021 to evict Patient 1 and Patient 2 from the rental residence and to seek monetary damages from Patient 1 and Patient 2 in the form of unpaid rent with interest and compensation for any damage to the premises. Respondent also took this action with knowledge that if successful this eviction would result in a loss of housing for Patient 3, who resided with Patient 1 and Patient 2.
 - d. Respondent continued to provide mental health treatment to Patient 1, Patient 2, and Patient 3 after filing the complaint for eviction and monetary damages. This included an appointment with Patient 3 on November 16, 2021 the day that he filed the eviction paperwork. Respondent failed to record that he was pursuing this civil action against Patient 1 or Patient 2 in the medical records of these three patients or to document any potential mental health treatment implications of his court filing upon Patient 1, Patient 2, and Patient 3.
 - e. Respondent also wrote checks for large sums of money to Patient 1 and Patient 2 that started on or about the inception of his treatment relationship with these patients. These checks were issued on a regular basis and lasted until November 2021, eventually totaling approximately \$489,000.00.
- 9. On November 4, 2022, Respondent was interviewed by investigators from the Vermont Secretary of State's Office of Professional Regulation and the Vermont Office of the Attorney General.
 - 10. During that interview, Respondent admitted to investigators that renting his house to Patient 1 and Patient 2 was a violation of professional boundaries.
 - 11. During that interview, Respondent also admitted that filing a suit to evict Patient 1 and Patient 2 from his house was a violation of professional boundaries.
 - 12. During that interview, Respondent also explained that he had given large amounts of money to Patient 1 and Patient 2 as loans for "one thing after another."

Violation One: 3 V.S.A. §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) Performance of unsafe or unacceptable patient or client care.

- 13. The State re-alleges and incorporates Paragraphs 2 through 12 above.

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14. Vermont law requires a LCMHC to practice competently by providing safe and acceptable patient care.
15. Paragraphs 2 through 12 above demonstrate that Respondent failed to provide safe and acceptable patient care when Respondent entered into a landlord/tenant relationship with current patients, filed a lawsuit to evict current patients from their residence, and gave large amounts of money to current patients as loans.
16. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 26 V.S.A. §3271(a)(6) Entering into an additional relationship with a client, supervisee, research participant, or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations

17. Vermont law requires a LCMHC to practice competently by refraining from entering into an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.
18. Paragraphs 2 through 12 above demonstrate that Respondent failed to refrain from entering into an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations when he leased his house to current patients thus entering into a landlord/tenant relationship with those current patients, a relationship that could (and in this case did) result in Respondent taking legal action against current patients to evict them from his house, and gave large amounts of money to current patients thus entering into a debtor/creditor relationship with current patients that could lead to Respondent taking legal action against current patients to collect upon a debt.
19. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Three: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

20. Vermont law requires a LCMHC to maintain professional boundaries.
21. Paragraphs 2 through 12 above demonstrate that Respondent failed to maintain professional boundaries by entering into a landlord/tenant relationship with current patients, filing a lawsuit to evict current patients from their residence, and giving large amounts of money to current patients as loans.
22. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

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Violation Four: 3 V.S.A. §129a(a)(8) Failing to make available promptly to a person using professional health care services, upon written request and direction of the person using professional health care services, copies of that person's records in the possession or under the control of the licensed practitioner.

23. Vermont law requires a LCMHC to make available promptly to a person using professional health care services, upon written request and direction of the person using professional health care services, copies of that person's records in the possession or under the control of the licensed practitioner.
24. Paragraphs 2 through 12 above demonstrate that Respondent failed to make available promptly to a person using professional health care services, upon written request and direction of the person using professional health care services, copies of that person's records in the possession or under the control of the licensed practitioner when Respondent took over three months to provide said records after a patient's attorney made a written demand for them, because Respondent hoped that if he avoided making the records available, the request would just go away.
25. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(8).

Violation Five: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

26. Vermont law requires a LCMHC to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
27. Paragraphs 2 through 12 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession by entering into a landlord/tenant relationship with current patients, filing a lawsuit to evict current patients from their residence, and giving large amounts of money to current patients as loans.
28. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(8).

Understandings

44. Respondent admits that the facts above are true and desires to voluntarily surrender his LCMHC license. The Parties reach a full and final Stipulation pursuant to these Understandings, the Acceptance of Voluntary Surrender, and Order below.
45. Respondent understands that this Voluntary Surrender Stipulation and Order will be reviewed and the tribunal may accept or reject the Order set forth below. If the tribunal rejects all or any portion of the Order, then this entire document shall be null and void.

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46. Respondent specifically waives any claim that any disclosures made to the tribunal during its review of this agreement prejudice Respondent's right to a fair and impartial hearing if this agreement is not accepted and proceeds to a merits hearing before the same tribunal.
47. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
48. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulated Voluntary Surrender of License.
49. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulated Voluntary Surrender of License.
50. Respondent agrees the Order set forth below may be entered, will be a binding Order upon Respondent, and will be made public.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health Practitioners hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of his LCMHC license.
- B. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be conditioned pursuant to whatever terms are found to be reasonable at the time of Respondent's application for licensure, taking into account the stipulated facts above.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT SECRETARY OF STATE

Dated: 3/9/2023

By: _____

Designated by:

George Hasselback

George L. Hasselback
Prosecuting Attorney
George.hasselback@vermont.gov

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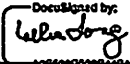


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RESPONDENT

Dated: 3/6/2023

By:

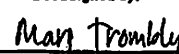
DocuSigned by:

DocuSigned by:
William Long

APPROVED AND SO ORDERED:

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 3/16/23

By:

DocuSigned by:

DocuSigned by:
Mary Trombly
Chairperson

Date of Entry: 3/16/23

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IN RE:)
William Long) **Docket No. 2022-269**
License No. 068.0045710)

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont (the "State") and makes the following charges against Licensed Clinical Mental Health Counselor William Long:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

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16. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

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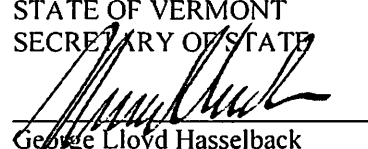
Relief Requested

WHEREFORE, the State of Vermont respectfully requests that the Board revoke, suspend, condition, or otherwise discipline Respondent's LMHC license.

DATED at Montpelier, Vermont this 6TH day of February, 2023.

STATE OF VERMONT
SECRETARY OF STATE

By: _____


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